

Ramesh Nath Pandey v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 26 October 2018 · WRIT - C No. 35300 of 2018 · **Writ disposed; clause 6.5 objections to EE; coercive steps stayed.**

HEADNOTE

Without deciding whether electricity arrears of Rs. 63,870 were due, the High Court disposed of a writ seeking quashing of a 27.09.2018 recovery-cum-disconnection notice by relegating the consumer to an objection before the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided within one month after hearing, and stayed coercive steps until that decision.

FACTUAL SUMMARY

Ramesh Nath Pandey filed a writ seeking quashing of a recovery-cum-disconnection notice dated 27 September 2018 issued for alleged electricity arrears of Rs. 63,870. He asserted that the bill was erroneous and that there were no arrears on his connection. The State and KESCO, Kanpur Nagar, were represented. After an adjournment on 25 October 2018, the Division Bench heard the petition on 26 October 2018 without examining the bill on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection to Executive Engineer against recovery/disconnection notice

HOLDING

A consumer disputing a recovery-cum-disconnection notice for alleged bill arrears may file an objection before the Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005. The writ was disposed of directing that if objections to the 27.09.2018 notice were filed before the Executive Engineer, KESCO, Kanpur Nagar, within a week, that officer shall consider and decide them in accordance with law within one month after hearing, and that no coercive steps shall be taken on the demand notice until that decision. ¶ 4-6

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Challenge to a recovery-cum-disconnection notice for alleged arrears was sent to the Executive Engineer under clause 6.5 rather than decided on the writ. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL WAS ERRONEOUS OR ARREARS OF RS. 63,870 WERE ACTUALLY DUE

Left to the Executive Engineer under clause 6.5. ¶ 3-5